

13. 25CV02049 Christina Dake, Guardian Ad Litem for Peyton Dake v. Biggs Unified School District

EVENT: Defendant Biggs Unified School District's Demurrer to Plaintiff's First Amended Complaint

Defendant Biggs Unified School District's Demurrer to Plaintiff's First Amended Complaint is SUSTAINED WITH LEAVE TO AMEND.

Since the duty of a governmental agency can only be created by statute or 'enactment,' the statute or 'enactment' claimed to establish the duty must at the very least be identified. (*Ramsey v. City of Lake Elsinore* (1990) 220 Cal.App.3d 1530, 1542) As Defendant noted, Civil Code 1714 does not itself impose liability on a government entity. (*Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1183)

Plaintiff shall amend within 20 days' notice of this order. Defendant shall prepare the form of order.

14. 25CV05008 Briggs, Cheyenne et al v. Muniz, Christian et al.

EVENT: Motion to Set Aside Defaults Entered Against Defendants Christian Muniz and Mollie Gunn

Motion to Set Aside Defaults Entered Against Defendants Christian Muniz and Mollie Gunn is GRANTED and is unopposed. The Court will sign the proposed order.

15. 25MH00574 Chico Police Department v. Lucas, Cole Buchanan

EVENT: Petition for Determination Regarding Return of Deadly Weapons

The Court will conduct a hearing. The Court notes the Petition does not appear to include a statement that Respondent was issued a receipt as required by Welfare & Institutions Code 8102. Although the Petition appears to indicate that is forthcoming, the Court is not finding it in the file.

16. 26MH00105 Petition of Moser, Anthony Thomas

EVENT: Request for Confidential Hearing for Relief from Firearms Prohibition

The Court will conduct a hearing. The Court is inclined to rule as follows.

Preliminary, under the circumstances the Court finds it appropriate to deem Mr. Moser's WIC 8103 petition as a request for hearing under WIC 8102(e) regarding the County's petition in addition to his requested relief from WIC 8103 prohibition.

There appears to be a conflict in the law based on the facts of these cases where it is undisputed that Applicant/Respondent was detained by law enforcement on 5150 grounds for purposes of WIC 8102 but was not "admitted" for purposes of WIC 8103. Because admission to a facility is an essential element for a WIC 8103 prohibition, the Court finds Applicant/Respondent is not prohibited from owning or possessing firearms under WIC 8103. Thus, his Petition under WIC 8103 is granted.

The question is what legal effect this outcome has on the County's 8102 petition. The conflict is thus: 8103 (which requires admission to a facility) prohibits owning or possessing firearms, whereas 8102 requires destruction of firearms currently owned or in the possession of the individual. Thus, if we grant the County's 8102 petition, that would conflict with the Court's ruling that Mr. Moser is not prohibited under WIC 8103 from owning or possessing a firearms.

When a general statute conflicts with a specific statute the specific statute controls the general one. (*People v. Weatherill* (1989) 215 Cal.App.3d 1569, 1577) The referent of "general" and "specific" is subject matter. (*Id*) Here, WIC 8102 is more specific based on subject matter, as it applies to firearms currently owned or possessed by the individual, whereas WIC 8103 applies to firearm rights more generally. Thus, as it pertains to the firearms that have been confiscated, WIC 8102 applies to the extent it conflicts with WIC 8103.

The other consideration is which statute was enacted later. The later statute, "by implication will be deemed to have repealed any contrary provisions contained in the earlier." (*Weatherill supra* at p. 1578.) Here, it appears WIC 8102 was enacted sometime after 8103. Thus, WIC 8102 would supersede 8103 for this reason as well.

Concluding that WIC 8102 controls on the issue of the confiscated firearms, the Court will conduct a hearing whether return of the firearms would likely endanger the individual or others.

17. 26MH00117 Butte County Sheriff's Office v. Moser, Anthony

EVENT: Petition for Judicial Determination Re: Return of Firearms

The Court will conduct a hearing. The Court is inclined to rule as follows.

Preliminary, under the circumstances the Court finds it appropriate to deem Mr. Moser's WIC 8103 petition as a request for hearing under WIC 8102(e) regarding the County's petition in addition to his requested relief from WIC 8103 prohibition.

There appears to be a conflict in the law based on the facts of these cases where it is undisputed that Applicant/Respondent was detained by law enforcement on 5150 grounds for purposes of WIC 8102 but was not "admitted" for purposes of WIC 8103. Because admission to a facility is an essential element for a WIC 8103 prohibition, the Court finds Applicant/Respondent is not prohibited from owning or possessing firearms under WIC 8103. Thus, his Petition under WIC 8103 is granted.

The question is what legal effect this outcome has on the County's 8102 petition. The conflict is thus: 8103 (which requires admission to a facility) prohibits owning or possessing firearms, whereas 8102 requires destruction of firearms currently owned or in the possession of the individual. Thus, if we grant the County's 8102 petition, that would conflict with the Court's ruling that Mr. Moser is not prohibited under WIC 8103 from owning or possessing a firearms.

When a general statute conflicts with a specific statute the specific statute controls the general one. (*People v. Weatherill* (1989) 215 Cal.App.3d 1569, 1577) The referent of "general" and "specific" is subject matter. (*Id*) Here, WIC 8102 is more specific based on subject matter, as it applies to firearms currently owned or possessed by the individual, whereas WIC 8103 applies to firearm rights more generally. Thus, as it pertains to the firearms that have been confiscated, WIC 8102 applies to the extent it conflicts with WIC 8103.

The other consideration is which statute was enacted later. The later statute, "by implication will be deemed to have repealed any contrary provisions contained in the earlier." (*Weatherill supra* at p. 1578.) Here, it appears WIC 8102 was enacted sometime after 8103. Thus, WIC 8102 would supersede 8103 for this reason as well.

Concluding that WIC 8102 controls on the issue of the confiscated firearms, the Court will conduct a hearing whether return of the firearms would likely endanger the individual or others.